

joint office, the receipt must be signed by *all the trustees* who have undertaken to act. And where a *power* is given to trustees to discharge the purchaser from seeing to the application of his purchase-money, the receipt must be signed even by a trustee who has parted with the estate by a conveyance to his co-trustees; for the transfer of the estate at law carries not along with it the confidence in equity (*c*). But the receipt need not be signed by a trustee who has *disclaimed*, for by the effect of disclaimer the acting trustees are put exactly in the same plight as if the renouncing trustee had never been mentioned (*d*).

19. Power to sign receipts in one, and delegation to another. — As a trust cannot be *delegated*, it follows that if A. and B. be trustees for payment of debts, and they convey the estate to C. upon the like trusts, the purchaser could not safely pay his purchase-money upon the receipt of C. In *Hardwick v. Mynd* (*e*) the executors and trustees renounced probate, and (probably with the intention of disclaiming) conveyed the estate to C., the heir-at-law; and certain mortgages made by C. were upheld. It might have been argued that as the trustees, by disclaiming, vested the estate in the heir, he was properly the trustee to sell or mortgage. It would be difficult, however, to maintain that the heir under such circumstances could sign a receipt, and certainly the Court did not put it upon that ground, but said that the mortgages if made by the trustees would have been good, and that they were in fact made by them, as they had deputed C. to act for them in the trust. Such a doctrine, however, at the present day could not be sustained.

20. Power of signing receipts, as regards trustees appointed by the Court. — As a general rule, where a special *discretionary* or *arbitrary* power was given to trustees, and the settlement contained no proviso for the appointment of new trustees with similar powers, it was not competent for the Court, [prior to the recent Acts,] on the substitution of new

(*c*) *Créwe v. Dicken*, 4 Ves. 97.

(*e*) 1 Anst. 109; and see Lord

(*d*) *Adams v. Taunton*, 5 Mad.

Braybroke v. Inskip, 8 Ves. 432.

435; *Hawkins v. Kemp*, 3 East, 410;

Smith v. Wheeler, 1 Vent. 128.